



Do No Harm v. Eddings, Docket No. 4:23-cv-00347 (E.D. Ark. Apr 12, 2023),
Court Docket

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U.S. District Court
Eastern District of Arkansas (Central Division)
CIVIL DOCKET FOR CASE #: 4:23-cv-00347-LPR

Do No Harm v. Eddings

Date Filed:	Apr 12, 2023
Status:	Closed
Nature of suit:	440 Civil Rights: Other
Assigned to:	Judge Lee P. Rudofsky
Cause:	28:2201 Declaratory Judgement
Date terminated:	2023-05-08
Jurisdiction:	Federal Question
Jury demand:	None

Parties and Attorneys

Plaintiff	Do No Harm
Representation	Cameron Thomas Norris Consovoy McCarthy PLLC 1600 Wilson Boulevard, Suite 700 Arlington, VA 22209 (703) 243-9423 cam@consovoymccarthy.com LEAD ATTORNEY ATTORNEY TO BE NOTICED

Defendant	Kenya L Eddings in her official capacity as Arkansas Minority Health Commission
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Executive Director

Representation

Noah P. Watson

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LEAD ATTORNEY

ATTORNEY TO BE NOTICED

Docket Entries

Numbers shown are court assigned numbers.

Entry #	Filing Date	Description
1	Apr 12, 2023	COMPLAINT against Kenya L Eddings, filed by Do No Harm. Summons issued and returned to counsel. (Fee of \$402 paid. Receipt Number LIT1763.) (Attachments: # 1 Civil Cover Sheet) (jbh) (Entered: 04/12/2023)
2	Apr 12, 2023	Corporate Disclosure Statement (Rule 7.1) by Do No Harm. (jbh) (Entered: 04/12/2023)
3	Apr 12, 2023	ORDER ON AMICUS BRIEFS. Signed by Judge Lee P. Rudofsky on 3/21/2023. (jbh) (Entered: 04/13/2023)
4	Apr 12, 2023	MOTION for Temporary Restraining Order by Do No Harm. (Administrative entry, no separate document attached, see 1 Complaint.) (cmn) (Entered: 04/14/2023)
5	Apr 14, 2023	(This is a TEXT ENTRY ONLY. There is no pdf document associated with this entry.) ORDER. The Clerk's Office identified a request for preliminary relief embedded in the Complaint. Accordingly, the Clerk's Office administratively noted that request in a separate docket entry 4 . However, under our Local Rules, a motion for preliminary relief must be filed separately from the Complaint. So far, Plaintiff has not filed such a motion. Without such a motion, there is no live preliminary relief issue properly before the Court. For administrative purposes, the Clerk is directed to remove the "hammer" from docket entry 4 . Signed by Judge Lee P. Rudofsky on 4/14/2023. (jwp) (Entered: 04/14/2023)
6	Apr 26, 2023	MOTION for Temporary Restraining Order , MOTION for Preliminary Injunction () by Do No Harm (Norris, Cameron) (Entered: 04/26/2023)
7	Apr 26, 2023	MEMORANDUM of points and authorities re 6 Motion for TRO, Motion for Preliminary Injunction filed by Do No Harm. (Attachments: # 1 Affidavit Rasmussen Declaration, # 2 Affidavit Member A Declaration, # 3 Affidavit Norris Declaration, # 4 Exhibit Exhibit A

Entry #	Filing Date	Description
		- Application, # 5 Exhibit Exhibit B - Rules and Regulations, # 6 Exhibit Exhibit C - Advertisement, # 7 Exhibit Exhibit D - Press Release, # 8 Exhibit Exhibit E - Press Release)(Norris, Cameron) (Entered: 04/26/2023)
8	Apr 26, 2023	(This is a TEXT ENTRY ONLY. There is no pdf document associated with this entry.) ORDER. Defendant is directed to file a Response to the Motion for a Temporary Restraining Order and Preliminary Injunction on or before May 8, 2023. Plaintiff will have until May 12, 2023, to file a Reply. There will be no extensions of this briefing schedule absent extraordinary circumstances. The Court intends to hold a hearing on this Motion on May 17, 2023, or May 18, 2023, depending on counsel's availability. Counsel must appear at the hearing in person. To the extent Plaintiff is seeking an ex parte TRO, that request is denied. At present, the Court does not see "specific facts in an affidavit or a verified complaint" that "clearly show that immediate and irreparable injury, loss, or damage will result to the movant before the adverse party can be heard in opposition." Fed. R. Civ. P. 65(b)(1)(A). If the Defendant intends to set the application deadline earlier than June 23, 2023, it must immediately inform the Court of that fact and identify the deadline date. As an exercise of its authority to raise jurisdictional issues sua sponte, the Court directs Member A to file a supplemental Declaration (under penalty of perjury) indicating Member A's age and, if under 21, whether Member A is willing, ready, and able to pledge to abstain from the use of alcohol. See Doc. 7-4 at 5 ("This pledge includes alcohol for applicants less than twenty-one years of age."). Under the same authority, the Court orders Plaintiff to file under seal a Notice indicating the name of Member A and the school Member A attends. For the present time and until and unless the Court orders otherwise, the information provided on this Notice must be treated as attorneys' eyes only. That means Defendant's counsel may not share this information with anyone, including but not limited to the Defendant or any other person or entity. Plaintiff is ordered to immediately provide this Text Order to Defendant. Signed by Judge Lee P. Rudofsky on 4/26/2023. (jwp) (Entered: 04/26/2023)
9	Apr 26, 2023	(This is a TEXT ENTRY ONLY. There is no pdf document associated with this entry.) ORDER. With respect to Docket Entry number 8, the Court orders that the Notice and supplemental Declaration therein referenced be filed on or before Tuesday, May 2, 2023. Signed by Judge Lee P. Rudofsky on 4/26/2023. (jwp) (Entered: 04/26/2023)
10	May 1, 2023	Unopposed MOTION for Extension of Time to File Supplemental Documents by Do No Harm (Norris, Cameron) (Entered: 05/01/2023)
11	May 1, 2023	(This is a TEXT ENTRY ONLY. There is no pdf document associated with this entry.) ORDER granting 10 Motion for Extension of Time to File. Given the lack of opposition from Defendant, the Motion is granted. Signed by Judge Lee P. Rudofsky on 5/1/2023. (jwp) (Entered: 05/01/2023)
12	May 4, 2023	NOTICE of Appearance by Noah P. Watson on behalf of Kenya L Eddings (Watson, Noah) (Entered: 05/04/2023)
13	May 4, 2023	Unopposed MOTION to Extend Time to Answer and Respond to Defendant's Motion for a Temporary Restraining Order and Preliminary Injunction by Kenya L Eddings (Watson, Noah) (Entered: 05/04/2023)
14	May 4, 2023	(This is a TEXT ENTRY ONLY. There is no pdf document associated with this entry.) ORDER denying 13 Motion to Extend Time. Signed by Judge Lee P. Rudofsky on 5/4/2023. (jwp) (Entered: 05/04/2023)

Entry #	Filing Date	Description
15	May 8, 2023	NOTICE of Voluntary Dismissal by Do No Harm (Norris, Cameron) (Entered: 05/08/2023)